

COMPLAINT FOR PATENT INFRINGEMENT File: S&H12-22-2015\_v3

**UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO**

**FILED**  
U.S. DISTRICT COURT  
DISTRICT OF COLORADO  
2015 DEC 22 PM 12:56

JEFFREY P. COLWELL  
CLERK

BY \_\_\_\_\_ DEP. CLK

Brandt, Steven Lee / Pro se  
and  
Walters, James Clay  
*Plaintiffs,*

v.

Honnecke, Von  
and  
Honnecke, Chase  
and

S&H HEATING, A/C, SHEETMETAL CO.  
*Defendants.*

CASE NO.

Jury Trial Demanded

**15 -CV-02785**

**COMPLAINT FOR PATENT INFRINGEMENT**

Plaintiffs Steven Lee Brandt and James Clay Walters (“Inventors”) file this Complaint  
Pro se for patent infringement against Defendants Von Honnecke, Chase Honnecke and S&H  
HEATING, A/C, SHEETMETAL CO. (“S&H”) and alleges as follows:

**PARTIES**

1. Von Honnecke is a resident of the State of Colorado.
2. Chase Honnecke is a resident of the State of Colorado.
3. S&H Heating, A/C, SHEETMETAL CO is a corporation organized and existing under the laws of Colorado with its principal place of business at 1444 W. Maple Avenue Denver, Colorado 80223-1736.
4. Colorado Box Company, Inc. (“CBC”) is a corporation organized and existing under the laws of Colorado with its headquarters and principal place of business at 3240 W. 71<sup>st</sup> Avenue, Westminster, Colorado 80030.
5. Steven Lee Brandt is a resident of the State of Colorado.

6. James Clay Walters is a resident of the State of Colorado.
7. Steven Lee Brandt and James Clay Walters are the sole owners of Colorado Box Company, Inc.

### **THE ASSERTED PATENT**

8. The patent at issue in this lawsuit United States Patent No. 8,999,029 B1, entitled “FURNACE FILTER BOX AND METHOD OF ASSEMBLY,” properly issued on April 7, 2015 (the „029 Patent” or “Asserted Patent”) The „029 Patent is collectively referred to herein as the “Asserted Patent.”
9. Inventors own by assignment all rights, title, and interests in the Asserted Patent.

### **BACKGROUND**

10. Inventors have a long history of innovation in the field of Heating, Ventilation Air Conditioning and the manufacturing of Furnace Filter Boxes both domestically and internationally with sales volumes approaching \$2,000,000.00 annually. The Colorado based corporation, Colorado Box Company (“The Company”) was established in September of 2012 for the purpose of manufacturing domestically and internationally, Furnace Filter Boxes and other related products. The Company received a Notice of Allowance for the name Flow Right™ as a Trademark, for the Company’s Furnace Filter Boxes, from the United States patent and Trade Mark Office (“USPTO”) in June of 2015. The purpose of the Flow Right™ Filter Box is for mounting next to an intake air opening in a furnace. The filter box is adapted for receiving a furnace filter therein for filtering intake air. The filter box includes a front panel with a furnace filter door. The front panel is attached to sides of a first side panel and a second side panel. The first and second panels are attached to a back panel.

A bottom panel is attached to a bottom portion of the front, back and first and second side panels. Mounted to an inside of an upper portion of the first and second side panels are filter rails. The filter rails are adapted for holding the furnace filter next to an open top in the filter box.

11. A primary objective of the subject invention is to provide a compact, safe and easy to assemble furnace (Known as Ready to Assemble) filter box that is adaptable to various sizes and types of air conditioning and heating furnaces. Another object of the invention is the height of the assembled filter box can be reduced because of space restrictions and without compromising the strength of the unit. Still another object of the invention is the furnace filter box can be shipped, preassembled in a small shipping box, to a remote location for assembly on a jobsite, thus reducing labor and transportation expense. Yet another object of the furnace filter box is it is adapted for holding one or more different size and width of furnace filters for improving filtered intake air introduced into the furnace. The subject furnace filter box includes a front panel with furnace filter door, a back panel, a first side panel and a second side panel. A bottom panel is attached to a bottom portion of the front, back and first and second side panels. Mounted to an inside of an upper portion of the first and second side panels are filter rails adapted for holding one or more furnace filters next to an open, top in the filter box. Prior to the operation of the furnace filter box, a height of the front panel, back panel, and first and second side panels is cut to fit in a space provided under the air intake of the furnace. Also, an air intake opening is cut in either the first side panel, the second side panel or the back panel for attachment to an air intake duct for receiving outside air into the filter box and then into the furnace.

These and other objects of the present invention will become apparent to those familiar with the heating and air conditioning units and filter boxes used with the furnaces.

12. In addition to the initial application of A furnace filter box adapted for mounting next to an intake air opening in a furnace, Inventors discovered that, The current invention overcomes deficiencies related to typical sheet metal filter boxes which are cut and formed to specific sizes creating handling, shipping, and safety issues for the manufacturer, distributor and installer. The spirit of the current invention addresses these deficiencies by creating an equivalent filter box, which can be up to or greater than one eighth the size, as strong or greater in overall strength, safer to handle and easier to install when compared to an equivalent counterpart.
13. The inventors have invested considerable and relevant capital in the Flow Right™ Furnace Filter Box(es), including but not limited to the establishing of off-shore, manufacturing plants located in Foshan and Guangzhou, China to meet the demand for Furnace Filter Boxes within the United States. Additionally the Company has invested additional capital in manufacturing and storage facilities within Colorado to handle the demand for product during manufacturing and production, logistics delays from China.
14. The Inventors have established business relationships for national sales and distribution of their products through leading national heating, ventilation and air conditioning supply houses and vendors, including but not limited to Johnstone Supply Company, Inc., Charles D. Jones Company and Sid Harvey Industries, Inc.

15. With proven successful design, development and sales within the United States, the Inventors proceeded to design, develop and manufacture other products to complement their patented design, including but not limited to various sizes of collapsible accordion filter and media filters.
16. One example of the Inventor's innovation is shown in Claim 17 describing a method of assembling a furnace filter box and the „029 Patent, Figure 2, BRIEF DESCRIPTION OF THE DRAWINGS, where the invention of the „029 Patent are embodied in the Inventor's illustrations, depicting the furnace filter box disassembled prior to being placed in a shipping box or taken out of the shipping box and ready to be assembled on a jobsite.
17. Success has invited competition. For many years S&H has manufactured and sold Sheet Metal Products in the Greater Denver Metro Area. S&H touts itself as a Denver, family owned and operated company, which has been installing and maintaining furnaces and air conditioners in the greater Denver metro area for over 70 years. More recently, it appears that S&H is copying Inventor's patented technology rather than installing or maintaining furnaces and, or purchasing from Inventors or developing its own Furnace Filter Box.
18. One example of S&H copying of Inventor's patented technology is S&H's advertising of a Furnace Pedestal, Return Air Filter Box ("The accused Products") on its website catalog page located at <http://store.sh-heat.com/collections/all> , including but not limited to copying and depicting the four product sizes, 14.5", 17.5", 21.0" and 24.5" wide.

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19. A second example of S&H copying Inventors patented technology is S&H advertising of the accused products on its website catalog page located at <http://store.sh-heat.com/products/furnace-pedestal> , whereas the images shown not only depict the Inventors product(s) as described in Claim 1, but also depicts various images showing the method of assembly as described in Claim 17.
20. A third example of S&H copying Inventors patented technology is S&H advertising of the accused products on its website catalog page located <http://store.sh-heat.com/products/furnace-pedestal> where consumers are referred to a YouTube video authored by [ahonnecke](#) (YouTube account) depicting a FILTER BOX as identified in the Inventors Claim 10, adapted for mounting next to an intake air opening in a furnace, the filter box disposed under an air intake in a lower portion of a furnace, the filter box adapted for receiving at least one furnace filter therein for filtering intake air received from an air intake duct, the filter box comprising: a vertical front panel with a furnace filter door, the front panel attached to sides of a vertical first side panel and a vertical second side panel, the first and second panels attached to a vertical back panel, a horizontal bottom panel is attached to a bottom portion of the front, the back and first and second side panels, the front, the back and the first and second side panels includes spaced apart vertical strength ribs formed therein for adding strength to the filter box; a pair of "U" shaped horizontal furnace filter rails mounted to an inside of an upper portion of the first and second side panels, the filter rails having a width of 1 inch and greater for receiving different widths of furnace filters, the filter rails adapted for holding the furnace filter next to an enlarged open top in the filter box and covering the open top;

and a vertical air intake opening in the first side panel, the air intake opening adapted for receiving an end of the air intake duct. This video can be viewed on YouTube at: <https://www.youtube.com/watch?v=fq3MftRI9GI> .

21. Inventors introduced their collapsible, ready to assemble Flow Right™ Filter Boxes on or about October 2012 and accordingly filed for a patent to protect its intellectual property on November 2, 2012, application No. 13/667,286.
22. Since then, Inventors have had to contend with S&H selling their copy of a Furnace Pedestal, Return Air Filter Box to Inventor's customers in Colorado and in other markets located within the United States, where Inventors customers have been approached by S&H owners as well as sales representatives offering to sell and selling the Inventors patented products, which, on information and belief, were made in Colorado, located within the United States.
23. In more than one instance and more recently, on Tuesday, December 1, 2015 Mr. Mark Monson, Territory Manager for Johnstone Supply, located in Denver, Colorado; one of Inventors largest customers, a leading cooperative wholesale distributor in the HVACR industry, with well over \$1.3 billion in annual sales and more than 370 independently owned store locations across America, was approached by Mr. Von Honnecke of S&H, where Mr. Honnecke proceeded to announce that S&H would sell Johnstone Supply, S&H's Furnace Filter Boxes at a reduced cost compared to the cost as currently provided by Inventors company, and in turn provide them with a better Furnace Filter Box.
24. In addition, on information and belief, S&H has informed Mark Monson, Territory Manager for Johnstone Supply, located in Denver, Colorado that S&H is selling, on average, more than 5,000 of the accused products units per month, at an average selling price of \$69.00 per unit to customers and potential customers of the Inventors. S&H and the selling of the accused products are alleged to cause monetary damages and infringe on the Inventors patents at an amount of \$345,000.00 per month in gross sales, and generating an average NET PROFIT in excess of \$50,000.00 per month.

25. On information and belief, S&H has offered and is offering for sale and/or has sold the Accused Products in the United States of America to other customers and clients of Inventors, including, but not limited to Chuck Lohmiller / Lohmiller & Company dba Carrier West located within the United States of America.
26. In addition, on information and belief, S&H has offered for sale and/or sold the Accused Products to other affiliates of Carrier Corporation USA and United Technologies Corporation USA ("UTC"); UTC Climate, Controls, Building & Industrial Systems is the world's largest high-technology building systems provider. It operates 51 factories and 39 design centers worldwide with roughly 50,000 employees and a direct presence in more than 180 countries with sales of \$30 Billion in sales annually.
27. In addition, upon receipt of Inventors patent in April of 2015, Inventors have been diligently pursuing a merger with or acquisition by Aprilaire and Research Products Corporation since June of 2015. For more than 50 years, Aprilaire is known as a world leader and innovator in home comfort and indoor air quality solutions. Negotiations by and between Inventors and Aprilaire have been hindered by the alleged infringement and sale and use of the accused products within the marketplace where S&H is having a direct impact on regional and national sales volumes.
28. Inventors have invested considerable time, energy, resources and capital for the expansion of its Guangzhou, China manufacturing facility in an effort to expand quickly throughout the United States of America with its patented products and provide supply channels for the demand.
29. While Inventor's products are superior, Inventors have lost substantial sales volume that it would have made but for S&H's infringement. In addition, Inventors has and will continue to suffer irreparable harm, including but not limited to loss of time, revenue and market share and/or harm to goodwill due to S&H's infringing acts.



**JURISDICTION AND VENUE**

30. This civil action for patent infringement arises under the Patent Laws of the United States, 35 U.S.C. §§ 1 *et seq.* This Court has jurisdiction over the claims presented herein pursuant to 28 U.S.C. §§ 1331 and 1338(a).
31. S&H manufactures, distributes, uses, offers for sale, and/or sells the Accused Products within the District, the United States, including the state of Colorado, that infringe one or more claims of the „029 patent.
32. On information and belief, S&H sells and/or offers for sale the Accused Products within the District, the State of Colorado and United States of America, which Accused Products are placed in the stream of competitive commerce and ultimately, on information and belief, are used, sold and/or or offered for sale in the United States of America. On information and belief, customers who have purchased the Accused Products from S&H are using the Accused Products in the United States of America. Therefore, S&H has directly infringed the Asserted Patent within the United States of America and/or contributed to or induced infringement of the Asserted Patent within the United States of America.
33. S&H is a U.S. Company transacting business within the District and state of Colorado; is causing tortious injury by committing all or part of the tortious acts described herein within the State of Colorado; and/or is causing tortious injury in the State of Colorado by committing all or part of the tortious acts or omissions described herein outside the state of Colorado; and/or is causing tortious injury by committing all or part of the tortious acts or omissions described herein outside the state of Colorado while regularly conducting or soliciting business or deriving revenue from goods used or consumed or services rendered within the State of Colorado and the United States of America. Therefore, this Court has personal jurisdiction over S&H.

34. Venue is proper in this District pursuant to 28 U.S.C. §§ 1400(b) and 1391(c).

**FIRST CLAIM FOR RELIEF**  
**INFRINGEMENT OF U.S. PATENT NO. 8,999,029**

35. S&H has been and is now directly and indirectly infringing one or more claims of the „029 Patent by (1) making, having made, manufactured, distributed, using, offering to sell, or selling the patented inventions, (2) by actively inducing others to purchase, distribute, use, offer to sell, or sell the patented inventions, and, or (3) by contributing to the manufacture, distribution, use, sale, and, or offer for sale the patented inventions in the State of Colorado, this Judicial District, and the United States of America.
36. More particularly, without limitation, S&H is now infringing one or more claims of the „029 Patent by manufacturing, having made, distributed, using, offering to sell, or selling the Furnace Pedestal, Return Air Filter Box and/or inducing or contributing to the infringement of the „029 Patent by others.
37. On March 10, 2014, Mr. Von Honnecke of S&H was notified in writing by Inventors that under 35 U.S.C. 271 of U.S. Patent Laws, S&H could be drawn into an expensive federal patent lawsuit, and was asked to cease manufacturing of the accused products and to contact Inventors directly to resolve the matter.
38. On April 2, 2014, S&H confirmed receipt of the Cease and Desist letter of March 10, 2014 by Inventors and replied stating that S&H was not willing to discontinue manufacturing and, or sale of the accused products.
39. Given the notice provided of March 10, 2014 and the reply by S&H of April 2, 2014, these infringing acts by S&H have thus been willful.
40. On October 27, 2015, S&H was again notified by U.S. Postal Service Certified Mail and email, Subject: U.S. Patent No. 8,999,029 B1 / FURNACE FILTER BOX AND METHOD OF ASSEMBLY, requesting the immediate cease of S&H's manufacturing, production, assembly and sale of any and all Return Air Filter Boxes (Furnace Pedestals) as manufactured by S&H SHEETMETAL CO.

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41. On November 11, 2015; Ms. Ellen Reilly, Counsel for Defendants S&H acknowledged receipt of Inventors October 27, 2015 letter to Cease and Desist. Defendants asked for time to respond and stated Defendants would respond to the matter prior to November 25, 2015.
42. On November 25, 2015, a letter was received via email from Ellen Reilly, Counsel for Defendants stating “Due to unforeseen business commitments, a response to your letter will not be forthcoming until the end of next week (December 4, 2015).”
43. A response was sent to Counsel for Defendants via email, acknowledging the delay, which included the statement “Reluctantly, Messrs.' Brandt and Walters will accept your request for additional time and allow you and your Client(s) until this Friday, December 4th to provide a proposed resolution to the claimed Patent Infringement.”
44. As of December 22, 2015, no email, letter or other source of communication has been received from Counsel for Defendant(s) or S&H proposing a resolution of said matter. Inventors are thus of the belief that Defendants are no longer represented by Counsel and Inventors have proceeded accordingly.
45. Given the good faith efforts on behalf of the Inventors to resolve matters reasonably and amicably, and given the lack of professional courtesy provided by Counsel for Defendant(s) and S&H’s failure to meet response deadlines; these infringing acts by S&H have thus been willful.
46. By the filing of this Complaint, Inventors have given S&H an additional real notice of the existence of the „029 Patent and S&H’s infringement. Despite such notice, S&H will likely continue to do so unless otherwise enjoined by this Court.
47. Inventors have been damaged by the infringing activities of S&H and will be irreparably harmed unless those infringing activities are preliminarily and permanently enjoined by this Court. Inventors do not have an adequate remedy at law.

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**REOUEST FOR RELIEF**

WHEREFORE, Inventors requests the following relief:

(a) A judgment in favor of Inventors that S&H has directly infringed and has indirectly infringed, by way of inducement and/or contributory infringement, one or more claims of the Asserted Patent and that such infringement has been willful;

(b) A judgment in that Inventors have been irreparably harmed by the infringing activities of S&H and that Inventors are likely to continue to be irreparably harmed by S&H's continued infringement;

(c) Preliminary and permanent injunctions prohibiting S&H and its officers, agents, associates, representatives, salespersons, distributors, servants, employees and those persons in active concert or participation in any way with any of them, as well as all successors or assignees of the interests or assets related to the Accused Products, from further infringement, direct and indirect, of the Asserted Patent;

(d) A judgment and order requiring S&H to pay Inventors damages adequate to compensate for S&H's infringement under 35 U.S.C. §284, which damages may include lost profits but in no event shall be less than a reasonable royalty for the use made of the inventions of the Asserted Patent, including pre- and post-judgment interest and costs, including expenses and disbursements;

(e) A judgment and order awarding treble damages to Inventors pursuant to 35 U.S.C. § 284, in view of the willful and deliberate nature of the infringement, with interest;

(f) A judgment declaring this to be an exceptional case under 35 U.S.C. § 285 and awarding Inventors in the event of engaging Counsel, its attorney's fees;

(g) A judgment holding S&H liable for all damages, costs, expenses, and attorneys' fees so awarded; and

(h) Any and all such further necessary or proper relief as this Court may deem just.

**DEMAND FOR JURY TRIAL**

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Inventors hereby demands a trial by jury of all issues so triable.

DATED: December 22, 2015

**COLORADO BOX COMPANY, INC.**

By:

Steven Lee Brandt / Pro se  
On behalf of Inventors, Messrs. Brandt and Walters  
Owner, Colorado Box Company, Inc.

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Phone: (303) 912-5169

  
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Steven Lee Brandt – Pro se

\*\*\*\* END \*\*\*\*